

**IN THE UNITED REPUBLIC OF TANZANIA**

**JUDICIARY**

**IN THE HIGH COURT OF TANZANIA**

**(DISTRICT REGISTRY OF MBEYA)**

**AT MBEYA**

**MISC. CRIMINAL APPLICATION NO. 13 OF 2021**

(Arising from Economic Case No. 02 of 2021 in the District Court of Mbeya

at Mbeya)

**MWAPI ERASTO SANGA.....APPLICANT**

**VERSUS**

**THE REPUBLIC.....RESPONDENT**

**RULING**

Date of Hearing: 15/03/2021

Date of Ruling : 16/03/2021

**MONGELLA, J.**

The applicant is seeking for bail pending trial of Economic Crimes Case No. 02 of 2021 in the District court of Mbeya. In this case he stands charged, together with another person, with thirty four counts. Counts number 1 to 17 are on the offence of storing human medicine in a premise not registered by the Tanzania Medicine and Medical Devices Authority contrary to section 57 (1) and 60 (2) of the Economic and Organised Crime Control Act, Cap 200 R.E. 2019. Counts number 18 to 34



are on the offence of selling unfit drugs contrary to section 75 (2) (c) and 6 (a) of the Tanzania Food, Drugs and Cosmetics Act of 2003.

The application was heard orally. The applicant was represented by Mr. Philip Mwakilima and Ms. Beatrice Kessy, learned advocates while the respondent was represented by Ms. Zena James, learned state attorney.

Mr. Mwakilima made a short submission whereby apart from praying for the contents of the applicant's affidavit to be adopted as part of the submission, he said that the respondent has not basically opposed the application.

In the affidavit the applicant stated that he is a reliable and traceable person with reliable sureties. The sureties have fixed place of abode as well as valuable movable and immovable properties within the United Republic of Tanzania. He also stated that he is ready to abide to all the bail conditions that shall be issued by this court including ensuring attendance in court whenever needed.

Ms. James, on the other hand, had no objection to the bail. She only urged the court to take into account the provisions of section 36 (5) (a-d) of the Economic and Organised Crime Control Act while granting the bail applied for.



I have considered the contents of the applicant's affidavit in support of the bail application as well as the submissions of both counsels. Bail is a basic right under the Constitution so long as the offence the applicant is charged with is bailable under the law. See: **DPP v. Daudi Pete** [1993] TLR 22 and **Tito Douglas Lyimo v. Republic** [1978] LRT 55. Since the offence is bailable under the law and the respondent has not raised any concerns to resist the granting of the same, I hereby grant the bail application upon the following conditions:-

1. The applicant should deposit **T.shs. Ninety Million One Hundred and Forty Seven Thousand One Hundred and Eighty Eight (90,147,188/-)**, being his portion on the half of the total amount of the value stated in the charge, or immovable property of equal value to the amount to be deposited.
2. The applicant should provide two sureties, whereby each surety shall execute a bond of **T.shs. Forty Five Million Seventy Three Thousand Five Hundred and Ninety Four (45,073,594/-)**. The sureties must be residents within the jurisdiction of the District Court of Mbeya.
3. Where the applicant opts to deposit immovable properties in compliance with the conditions set herein, it shall suffice for him to deposit title deeds. Where the title deeds are unavailable, sufficient evidence must be provided with respect to the existence and ownership of such title deeds or properties.

4. The applicant must surrender all travel documents, if any, to the Resident Magistrate presiding over his case in the District court of Mbeya. Where the applicant claims not to possess any travel documents, proof to that effect must be obtained from the Immigration Authority.
  5. The applicant must not leave the jurisdiction of this Court Sub Registry Mbeya without written permission of the presiding Resident Magistrate at the District court of Mbeya.
  6. The applicant must report in person to the presiding Resident Magistrate at the District court of Mbeya whenever needed to do so.
  7. Verification of sureties and bond documents shall be effected by the presiding Resident Magistrate at the District court of Mbeya.
- It is so ordered.

Dated at Mbeya on this 16<sup>th</sup> day of March 2021

  
**L. M. MONGELLA**  
**JUDGE**

**Court:** Ruling delivered in Mbeya, in chambers, on this 16<sup>th</sup> day of March 2021 in the presence of the applicant and his advocate Ms. Beatrice Kessy, and Mr. Hebel Kihaka, learned State Attorney for the respondent



  
**L. M. MONGELLA**  
**JUDGE**